

Prabandhak (C/M) Adarsh Rashtriya Inter College v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 September 2014 · Writ - C No. 46294 of 2014 · **Writ disposed; Executive Engineer to decide bill revision under Clause 6.5 within two months.**

HEADNOTE

Where the only prayer pressed was a direction to revise an electricity bill in accordance with law, the High Court held that that power vests in the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and disposed of the writ directing that authority to decide the grievance within two months if no revision had yet been made.

FACTUAL SUMMARY

The petitioners, the manager of the committee of management of Adarsh Rashtriya Inter College and another, approached the Allahabad High Court against the State of Uttar Pradesh and two others, including the Executive Engineer. The only prayer pressed was a direction to the respondents to revise the petitioners' electricity bill in accordance with law. Counsel for both sides were heard. The order discloses no further facts about the meter, tariff, or the amount of the disputed bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

Power to revise an electricity bill vests in the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A writ seeking only a direction to revise the bill in accordance with law is to be left to that authority, which shall decide the grievance within two months of production of a certified copy if no revision has yet been made. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Where the only prayer pressed was a direction to revise an electricity bill in accordance with law, the High Court held that that power vests in the Executive Engineer under Clause 6.5 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS' ELECTRICITY BILL REQUIRED REVISION ON THE MERITS

Left to the Executive Engineer under Clause 6.5 if no revision had yet been made. ¶ 1